

Kanpur Electricity Supply Company v. Presiding Officer, Permanent Lok Adalat

Allahabad High Court · Single Judge · 26 February 2015 · Writ-C No. 12096 of 2015 · WRIT - C No. - 12096 of 2015 · **Notice issued and writ listed; clause 4.1 arrears bar not decided.**

HEADNOTE

KESCO challenged a Permanent Lok Adalat, Kanpur Nagar order that recorded the licensee's consent and directed a new connection after formalities. Counsel denied that consent and invoked paragraph 4.1 of Chapter 4 of the Electricity Supply Code, 2005 (arrears on the premises bar a new connection). The Allahabad High Court issued notice to the consumer and listed the writ, holding only that the matter requires consideration.

FACTUAL SUMMARY

Kanpur Electricity Supply Company challenged before the Allahabad High Court a Permanent Lok Adalat, Kanpur Nagar order dated 6 December 2014. That order recorded KESCO's consent to release a new electricity connection to respondent No. 2 and directed the connection after completion of formalities. Counsel denied any such consent for a new connection on the same house or building, and submitted that electricity arrears on the premises make a fresh connection impermissible under paragraph 4.1 of Chapter 4 of the Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

interlocutory listing of writ against PLA new-connection order

HOLDING

The Court issued notice to the consumer and listed the writ for hearing after recording KESCO's denial of consent and its invocation of Electricity Supply Code, 2005 clause 4.1 (no new connection on premises with arrears). It decided neither the Lok Adalat's consent finding nor the arrears bar, holding only that the matter requires consideration. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 4.1 OF THE ELECTRICITY SUPPLY CODE, 2005 BARS A NEW CONNECTION ON THE SAME PREMISES WHILE ELECTRICITY ARREARS REMAIN UNPAID

Counsel placed paragraph 4.1 of Chapter 4; the Court said the matter requires consideration and listed the writ. ¶ 1

NOT DECIDED — WHETHER THE PERMANENT LOK ADALAT CORRECTLY RECORDED KESCO'S CONSENT TO RELEASE A NEW CONNECTION

¶ 1